HILCHOT HANUKKAH – SHULHAN ARUKH

One Flame From Another & Who May Light

Hilchot Hanukkah I Siman 674–676

Dayan Daniel Kada · Thursday Night Halacha · Shiur 5 of 7 Shulḥan Arukh, Oraḥ Ḥayim 674, 675 and the opening of 676

Where We Are

Siman	Topic
670	What is forbidden on Hanukah: eulogies, funerals, fasting
671	Where to place the menorah (inside, outside, where outside), and the synagogue menorah
672	When: the precise time to light
673	What: the correct oils and wicks

"So we've got the time, we've got the location, we've got the material." Now come further laws about using the lights, lighting one from another, and how exactly the mitzvah is done.

Siman 674: Lighting One Hanukah Light From Another

מותר להדליק מנר לנר... *...It is permitted to light from one light to another*

Rav versus Shmuel

- **Rav: forbidden to light one Hanukah light from another.**
- **Shmuel: permitted.**

The general rule: in the hundreds of disputes between Rav and Shmuel across Shas, monetary law follows Shmuel ("Shmuel was the sharp one with financial things") and issur (prohibitions) follows Rav. This dispute concerns a prohibition, so we would expect to follow Rav.

But the Gemara says this is one of only three places in Shas where the halacha follows Shmuel against Rav on an issur.

Rav's two reasons

ביזוי מצוה, disrespect to the mitzvah: using one mitzvah light to kindle another is not honourable.

אכחושי מצוה, weakening the mitzvah: while you draw the flame to light the second, the first weakens for a few moments.

Rabbi Sacks' insight

Rabbi Jonathan Sacks, of blessed memory, used to explain why Shmuel wins here:

Yes, while you light another, the first flame may weaken for a moment. That happens when you have to "light other people up": sometimes you have to be weakened for a few moments. But the ultimate good is that there are now two flames, and that is far more powerful than the momentary loss.

Directly, or through an intermediary?

Within Shmuel's view there is a further question:

View	Ruling
The default (סתם) opinion	Permitted only directly, flame to wick. Through an intermediary such as a match there is a ביזוי and it is not permitted
"Some say" (יש אומרים)	Even through an intermediary is permitted

The rule for the Shulḥan Arukh: when it gives a סתם followed by יש אומרים, the halacha follows the סתם. So it is permitted, but only directly.

Two scenarios

1. One menorah. Second night, one match left. You light the first light and the match goes out. You may not dip the spent match into the first flame and carry it over. You may bring the two wicks together, or lift the second light to the first, light it, and put it back.

2. Two households under one roof. Two separate, financially independent households living in one house, common in the past in large shared homes, each must light its own menorah (Siman 677), because the mitzvah is נר איש וביתו. One may light from the other's menorah, but directly: bring your candle to the other menorah, light it, and take it back. - Some are uneasy, because (as 675 will teach) it is better not to move a menorah at all. One posek permits it because it is brief and both are obligated. Others say the menorahs should be brought together. The main halacha: permitted, directly.

Even for the extra (hiddur) lights

The second and following lights on one menorah are only mehadrin, not obligatory, yet everyone agrees you may light them from the first. This underscores the earlier theme: the Sages saw something unique in the Hanukah menorah, enough to allow even the hiddur lights to be lit from the obligatory one.

But not when there is no mitzvah

If a light went out after being lit properly, there is no mitzvah to relight it (הדלקה עושה מצוה, as we learned). So you may not relight it from another Hanukah light, even directly. A first lighting of an extra light is at least a hiddur; relighting one that went out is not even that.

That is why we have the shamash. It is not part of the menorah, so once it is lit you may use it freely to light anything. This whole discussion applies only without a shamash.

The Rema: the custom not to light even directly

The Rema, quoting Tosafot: although we follow Shmuel, it is a good custom not to light one from another even directly, since the essential mitzvah is a single light.

Three qualifications: 1. The Shach: even by the Rema, the stringency applies only to one's own menorah. Lighting another household's obligatory menorah from yours is a real mitzvah, and Tosafot and the Rema agree it is permitted (directly). 2. The custom concerns lighting from the first (obligatory) light. You may light the third and fourth from the second, since those are hiddur lights. 3. It applies only during the first half hour. After the half hour there is no more mitzvah (which is why you may extinguish the lights then), so everyone agrees you may light from it, even through an intermediary.

674:2: Hanukah to Shabbat or synagogue lights?

יש מי שאומר that one may light from a Hanukah light to the synagogue lights or the Shabbat candles. The Rema adds: even a candle for studying a shiur in the evening.

The poskim reject this, because, as learned in 673, one may not benefit from the Hanukah lights even for holy purposes. So one should not light Shabbat candles from the menorah. However, in a genuine emergency (Shabbat is about to begin and this is the only flame), there is room to rely on it, directly.

Siman 675: Lighting Makes the Mitzvah, Not Placing

הדלקה עושה מצוה, ולא הנחה עושה מצוה.

What this permits

If placing made the mitzvah (one view in the Gemara), the menorah would have to be put down for the sake of the mitzvah, like sechach: if a non-Jew laid the sechach, you lift it and put it back down. We do not hold that.

Case	Ruling
A menorah that stayed in the same spot all year since last Hanukah	Fine. No need to move it and put it back
Your non-Jewish cleaner sets the menorah on the windowsill	Absolutely fine
A Shabbat lamp still burning on Saturday night	Extinguish it and relight it; no need to lift and replace it

What it still demands

ומכל מקום צריך שידליקנה במקום הנחתה. שאם הדליקה בפנים והוציאה לחוץ, לא יצא, שהרואה אומר לצרכו הוא מדליקה. *Nonetheless one must light it where it will stand. If he lit it inside and took it outside, he has not fulfilled the mitzvah, because an onlooker says he lit it for his own use.*

So placing still matters in two ways: 1. Light it where it is meant to stand. Lighting it in an improper place and then moving it to the proper one does not work. 2. You may not simply hold it (below).

The reverse: proper place, then moved

What if you lit it outside, the ideal place, and after ten minutes, cold, you bring it in to enjoy it? It was lit in the correct place, so the main view seems to permit it. The Mishnah Berurah: preferably don't move the menorah at all within the half hour. If it was lit properly and must be moved, there is room for it.

What is definitely wrong: the father is ill in bed; his wife brings the menorah to his bedside, he says the berachah and lights it there, and then it is carried down to the window. That's wrong. The bedside is not the place of obligation, and the lighting is the mitzvah. Better: the wife, or the children over bar/bat mitzvah, light at the window.

Questions

"What if my window faces a wall with no view?" Then light at another window that does have a view. "Which house does not have a window?"

"Like a council flat in Brixton?" "They have a view. They're not living in prison." If the flat is very high (above the street sight line discussed earlier, so a passer-by wouldn't look up and see it), light inside the front door, for yourself and the family, rather than at the window. Otherwise, light at any window with a view.

"I lit in a hotel room under the TV, and it burned the TV." "You should have lit by the entrance of the door rather than by the TV." "I didn't know." "So now you know for next time."

You can't just hold it

A hotel scenario: the hotel forbids lighting for health and safety. Since the basic mitzvah is one light, you'll hold a single candle by the window for half an hour. No. The Sages said that someone holding a candle looks as if they are using it for light, which is what one normally holds a candle for. It must be set down.

Enough fuel at the moment of lighting

The time of lighting makes the mitzvah, so at that moment there must be fuel for the full half hour. Lighting with too little oil and topping it up a minute later does not work.

On Friday afternoon you need oil to last until half an hour after nightfall, about an hour and a half. The small Hanukah candles sold in packs are a problem even for half an hour, and certainly fail on Friday. You cannot add fuel once Shabbat begins, and from the Hanukah perspective it wouldn't help anyway.

Again: the Shulḥan Arukh writes this as יש מי שאומר, "there is one who says." That does not mean he disagrees. He found it in one source and brings it in that form. Everyone agrees with this ruling.

675: Women and Children

Women

אשה מדלקת נר חנוכה, שאף היא חייבת בה. ***A woman may light, since she too is obligated.***

The Shulḥan Arukh means more than a woman living alone: a woman may light on behalf of the household, including her husband.

Why obligated, when women are exempt from positive time-bound mitzvot? Hanukah is positive and time-bound, but: 1. The decree was upon them too: brides were taken to the ruler before their weddings. 2. The salvation came through a woman: Yehudit, daughter of Yoḥanan Kohen Gadol, who killed the ruler.

So men and women are equally obligated.

Then why does the husband usually light? The general principle: when husband and wife are both obligated, both present and both able, the בעל הבית should perform it. The Gemara says it is improper otherwise.

When the wife should light: - He is away: on a business trip for a day or more, she lights at home, and his obligation is fulfilled through his household. - She knows the berachot and he doesn't ("she's more religious than him"). He should learn them, but if he can't, she lights. - He is ill and can't come down. - He is coming home very late: she lights at the proper time, rather than waiting (as discussed under 672).

Children

Although women and children are often grouped together, a child does not have the same obligation, even one who has reached חינוך. A child's obligation is one of education, not the real obligation.

- **The main halacha in the Shulḥan Arukh: if a child lights the menorah, the mitzvah has not been done, even if an adult placed it. Placing is irrelevant; the lighting makes the mitzvah.**
- **"Some say" a child who has reached ḥinuch may light. But for Megillah the Shulḥan Arukh clearly rules that a child cannot read for others, and the laws are comparable. So lechatḥilah, the father or mother lights.**

Who lights which light? (third night, father, mother, a ten-year-old)

Light	Who
The berachot and the first (obligatory) light	The father: the mother can, but when both are present he does
The second light	The mother may, "and I believe should be encouraged to participate"
Further lights	Children who have reached ḥinuch: see below
The shamash	Children under ḥinuch (four or five years old)

The extra lights by children of ḥinuch age: - The Ben Ish Ḥai: no. Each light is a hiddur and a mitzvah, and a child doesn't perform the mitzvah. - The Syrian custom, which goes back a long time: once the father has lit the night's first light, he hands the remaining lights to each member of the household who has reached ḥinuch, boys and girls.

"I remember clearly growing up in my house... my father would light the first candle, and then the boys and the girls would light the other ones." The Rabbi calls it "a beautiful minhag to encourage everyone to participate in the mitzvah," and there is "ample room" for it, though some poskim want every light except the shamash lit by someone over bar mitzvah.

Children under ḥinuch should not light any of the night's lights: although they are only hiddur, the child has no understanding, and the lighting makes the mitzvah. In the Rabbi's home, the four- or five-year-old lights the shamash, which has no significance.

Ashkenazim (Rema): each person lights their own menorah, and a child who reaches ḥinuch lights. The general Ashkenazi custom today, as the Rabbi understands it, is that children light their own menorah from bar/bat mitzvah. "For us anyway we light one menorah."

What is "the age of ḥinuch"? There is no fixed age. It means the age at which a child understands what is being done: sometimes five, sometimes six, sometimes more. "Sometimes you get these child prodigies," and some children are seven or eight before they are ready. It depends on the child.

A Ḥeresh and a Blind Person

A ḥeresh (deaf and mute) has the halachic status of someone whose intellect is not considered developed, is not obligated, and cannot light on others' behalf.

A blind person is a different story. Throughout Shas, a blind person is obligated in every mitzvah possible for them: Megillah, shofar and so on. (A ḥeresh need not hear the Megillah or shofar.)

May a blind person light, and say the berachah?

Best practice: if he lives with family, his wife or a child over bar mitzvah lights and he listens and fulfils the mitzvah.

If alone, with someone to guide his hand: - The Mishnah Berurah cites one posek: he lights with assistance, without a berachah, since he cannot see the lights. - The vast majority disagree. Compare the morning berachah פוקח עורים and, before Shema, יוצר המאורות, a whole berachah about luminaries a blind person cannot see. He says them, because the light benefits others, and others help him. Likewise, Hanukah is pirsumei nisa for others. Even though it also applies to oneself, there is definitely an element of publicising the miracle outside.

So a blind person may light and say all the berachot. Strictly speaking, if a man who has lit for his family for many years becomes blind, ḥas veshalom, and wants to keep his mitzvah, his wife holds his hand, and he says the berachot and lights.

Mark asked: isn't this like a blind person being called to the Torah? The Rabbi: the final halacha does allow a blind person an aliyah with the berachot, though the Shulḥan Arukh originally did not. It changed because originally each person read his own portion; now the ḥazzan reads for everyone, "so it's slightly different there."

Another participant: isn't it depressing for a blind man to light something he can't see? The Rabbi: "We can't assume to know how blind people feel... To bring light to the world, even if you can't see the light yourself. We do many things in life where we don't see the light in it for ourselves, but we see the light is for other people, and that's worthwhile."

A Convert

A ger may say all the berachot, including שעשה ניסים לאבותינו, "who performed miracles for our fathers." Just as the Rambam wrote in his famous letter to Ovadyah the convert: a convert says אלקי אברהם, אלקי אבותינו ואלקינו, because Avraham Avinu is the spiritual father of every convert. Once part of the community, they are part of its spiritual ancestry.

Siman 676 (Opening): The Berachot

The Rabbi pressed on a few minutes more, keen to finish "another five chapters, very, very small ones" before Hanukah.

המדליק בלילה הראשון מברך שלש ברכות: להדליק נר חנוכה, ושעשה נסים, ושהחיינו. ואם לא בירך זמן בלילה ראשון, מברך בלילה שני או כשיזכר. ***On the first night one says three berachot: to light the Hanukah light, who performed miracles, and Sheheḥeyanu. If he did not say Sheheḥeyanu on the first night, he says it on the second night, or whenever he remembers.***

The first berachah: "נר חנוכה" or "נר של חנוכה"?

Text	Where
להדליק נר של חנוכה	The Gemara, the Rambam, all the original sources. All Ashkenazi siddurim. The original Sephardi text, still preserved by the Spanish & Portuguese
להדליק נר חנוכה	Middle Eastern Sephardim, who changed their text because of the Arizal

"Always look back at S&P, because S&P had the original Sephardi text."

The Arizal's reasoning: the initials of להדליק נר חנוכה are ל-נ-ח, which rearranged spell נחל, "a stream." Saying it this way draws down a stream of blessing. On Shabbat we still say נר של שבת, since there is no such acronym there.

The Ben Ish Ḥai was enthusiastic: don't say "של," or you lose the meaning of the stream. His לשם יחוד prayer before lighting mentions the נחל.

"If that's your minhag, fine. But we should know the main text is להדליק נר של חנוכה, and that was the text in the Gemara, the Rambam and the Rishonim."

The second berachah: "בזמן הזה" or "ובזמן הזה"?

שעשה נסים לאבותינו בימים ההם...

- **S&P siddur: בימים ההם ובזמן הזה, "in those days and in this time," with a *vav*.**
- **Kenneth reported the Ashkenazi text: בזמן הזה without the *vav*, "in those days, at this season." That is also how (Middle Eastern) Sephardim say it.**

"And the meaning is actually very different": with the *vav*, the berachah speaks of miracles in our own time as well. The recording ends at this point, and the discussion continues next week.

Summary

1. **674: the halacha follows Shmuel, one of three places in Shas where he beats Rav on an issur: you may light one Hanukah light from another. Rabbi Sacks: a moment's weakening is worth two flames.**
2. **Directly only, not through a match (the סתם). The Rema: it's a good custom not to light from the first light even directly, but you may for another household, from the hiddur lights, and after half an hour.**
3. **No relighting a light that went out from another Hanukah light (no mitzvah remains). The shamash solves everything.**

4. **Not to Shabbat candles from the menorah, except in a real emergency, and directly.**

   675: הדלקה עושה מצוה. A non-Jew may set out the menorah. But light it where it will stand: don't light at a bedside and carry it to the window, don't hold it, and have enough oil at the moment of lighting (about 1½ hours on Friday).

6. **Women are equally obligated (the decree, and Yehudit) and may light for the household, though when both are present and able, the husband lights.**
7. **Children, even at ḥinuch, do not light the obligatory light. The Syrian custom: after the father lights the first, children of ḥinuch age light the rest. Small children light the shamash.**
8. **A blind person may light with help and say all the berachot (the majority, like יוצר המאורות). A ḥeresh may not light for others.**
9. **A convert says שעשה נסים לאבותינו, as the Rambam wrote to Ovadyah the convert.**
10. **676: three berachot on the first night; a forgotten Sheheḥeyanu can be said on a later night. The original text is נר של חנוכה (the Arizal: נר חנוכה, for נחל). בזמן הזה vs. ובזמן הזה (S&P).**

Coming Up

Next shiur: the rest of 676, then 677–681. The order of the berachot, which way to light, הנרות הללו, priorities when money is short, Friday and Motza'ei Shabbat, and guests and travellers.

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